

Deepika Dubey v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 13 February 2020 · WRIT - C No. - 5242 of 2020 · **Writ disposed; bill-computation dispute remitted under clause 6.5; recovery stayed.**

HEADNOTE

A writ challenging a recovery citation on alleged miscalculation of electricity charges was disposed of by directing the consumer to file a fresh objection before the competent authority under clause 6.5 of the U.P. Electricity Supply Code, 2005, to be decided by a reasoned speaking order; coercive action on the citation was stayed pending that order.

FACTUAL SUMMARY

Deepika Dubey approached the Allahabad High Court under Article 226 challenging a recovery citation dated 20 July 2019 issued for electricity dues. She alleged a serious error in the computation of electricity charges, with specific averments in paragraph 16 of the writ petition. Counsel for respondent no. 2, the distribution licensee, submitted that the matter could be remitted to the authorities to decide her objections on bill correction. The Division Bench heard both sides on 13 February 2020.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correction-clause-6.5

HOLDING

Where a consumer challenges a recovery citation alleging error in computation of electricity charges, the writ court will dispose of the petition by directing the consumer to file a fresh objection before the competent authority under clause 6.5 of the U.P. Electricity Supply Code, 2005, to be decided by a reasoned speaking order, and will stay coercive recovery on the citation pending that decision. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy The Court declined to examine the bill on merits in writ and remitted the computation dispute to the competent authority under clause 6.5. ¶ 1

bill-correction-clause-6.5 The petitioner was directed to make a fresh objection on computation of electricity charges, to be decided under clause 6.5 by a reasoned speaking order. ¶ 1

clause-6.5-statutory-remedy-disputed-bill Clause 6.5 of the 2005 Code was treated as the statutory forum for deciding the disputed electricity bill that underlay the recovery citation. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY CHARGES IN THE BILL WERE IN FACT MISCOMPUTED AS ALLEGED IN PARAGRAPH 16 OF THE WRIT PETITION

Remitted to the competent authority under clause 6.5; no finding on the quantum or correctness of the bill. ¶ 1